

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.1975 of 2015

Most. Manik Chan

----- Plaintiff-Petitioner

=Versus=

Moulana Abdul Jalil and others

----- Defendant-Opposite Parties No.1-4

Mr. Gouranga Chandra Kar, Advocate

----- For the Petitioner

Mr. Md. Shahidul Islam, Advocate

----- For the Opposite Parties No.1 & 3-4

Heard on 14.01.2018 and
Judgment on 15.01.2018

At the instance of the present-plaintiff-petitioner, Most. Manik Chand, Leave was granted and a Rule has been issued calling upon the opposite party Nos.1-4 to show cause as to why the impugned judgment and order dated 08.03.2015 passed by the learned Additional District Judge, Habiganj in Civil Revision No.57 rejecting the Civil Revision and thereby affirming the order dated 25.08.2009 in Title Suit No.01 of 2004 passed by the learned Joint District Judge, Habiganj rejecting the prayer of the plaintiff-petitioner should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present petitioner as the plaintiff filed the Title Suit No.01 of 2004 in the court of the learned Joint District Judge, Habiganj praying for setting aside the judgment and order dated 27.12.1977 in the Title Suit No.192 of 1974 which was obtaining by practicing fraud through a forged

solenama. The plaint contains that one Watir Ullah was the original owner who died leaving behind two sons namely, Noim Ullah, and Yeakub Ullah upon the land measuring nine decimals as described in the plaint out of which they transferred some land to the plaintiff-petitioner. The suit has been contested by the present-defendant-opposite parties No.1-4 by filing a written statement and denying all the statements made in the plaint.

In the suit the present-petitioner filed an application for hand writing expert opinion regarding the signature of Manik Chand under the provision of the Code of Civil Procedure which was allowed. As per the said order a hand writing expert required further valid documents to submit a complete report. The present-petitioner accordingly given some documents for the purpose which were ordinary rent receipts and two tenancy agreements and some sale deeds in the year of 1998 and 1997unregistered and recent documents whereas the alleged signatures in the solenama (compromise deed) were in the year of 1975.

After hearing the parties the trial court rejected the application by the order dated 08.03.2009. Being aggrieved the present-petitioner filed Civil Revision No.25 of 2009 under Section 115(2) of the Code of Civil Procedure in the court of the learned Joint District Judge, which was discharged after hearing the parties on 04.06.2009. Against the said order the present-petitioner filed a review application for the said discharged order which was also rejected by the court on 25.08.2009. Thereafter, the petitioner filed the Civil Revision No.57 of 2009

challenging the said order passed in the review application. After hearing the parties the learned Additional District Judge, Habiganj discharged the Rule by his judgment and order dated 08.03.2015. This revisional application has been filed challenging the legality of the said impugned judgment and order under Section 115(4) of the Code of Civil Procedure, Leave has been granted and the Rule has been issued thereupon.

Mr. Gouranga Chandra Kar, the learned Advocate appearing for the petitioner submits that the learned Additional District Judge, Habiganj committed error of law in the decision occasioning failure of justice as well as the learned Additional District Judge, Habiganj did not consider the plaintiff's prayer in respect of examination of signature by the hand writing expert although partly admitted the claim, as such, the same is liable to be set aside for ends of justice. He also submits that the alleged signatures have been obtained by false personification, which is needed to be verified by hand writing expert opinion in the interest of justice. He further submits that the suit has been filed by the petitioner from the date of knowledge on 10.01.1991.

The Rule has been opposed by the present-opposite parties No.1-4.

Mr. Md. Shahidul Islam, the learned Advocate appearing for the opposite parties No.1-4 submits that the present petitioner was required to supply necessary sufficient documents for an expert opinion but a final report of the expert could not be obtained as the petitioner failed to provide the necessary documents for obtaining a hand writing expert

opinion and the learned revisional court below affirmed the judgment of the earlier three courts regarding a hand writing expert opinion, as such, there is no error on the part of the learned revisional court below, the Leave should be dismissed and the Rule should be discharged.

The learned Advocate also submits that the Title Suit No.01 of 2004 was filed in order to cause suffering to the present-opposite parties beyond the limitation period as alleged compromised deed was signed in the year of 1975 in Title Suit No.192 of 1974, as such, the suit was barred by limitation and the present impugned order suffered from serious infirmity of law.

Considering the above submissions made by the learned Advocates appearing of the respective parties, and also considering the revisional application filed under Section 115(4) of the Code of Civil Procedure along with Annexures therein, in particular the impugned order, it appears to me that the present-petitioner as the plaintiff filed the title suit for setting aside the judgment and order dated 27.12.1977 in the Title Suit No.192 of 1974. This Court has to decide whether the learned revisional court committed any error of law by rejecting the application without giving any further opportunity for obtaining a hand writing expert opinion regarding the signatures given by the present-petitioner upon a compromise agreement dated 26.12.1975.

In this regard, I have carefully examined the impugned judgment and order passed in the original suit rejecting the prayer of any hand writing expert opinion as the petitioner was given sufficient opportunity

at the first time and also failed to provide sufficient legal documents for verifying the signature by way of expert opinion. I am not benefited to peruse myself the alleged solenama agreement and the signature of the present-petitioner thereupon as the record has not been called for. However, after perusing the judgment and order passed as many as four occasions by the learned courts below on the basis of the document provided by the present-petitioner for the purpose of obtaining an opinion. I have also made queries with the learned Advocate as to the possibility to supply document to be needed for expert opinion but I did not receive any necessary response from the learned Advocate for the petitioner.

However, the document supplied by the present-plaintiff-petitioner for a hand writing expert opinion look to be rent receipts and unregistered sale deed of 1987 and a Baina of 1997 which claimed to have some signatures of the present-petitioner. All papers are seem to be unregistered and unauthorized documents and these seem to be created for the purpose of the hand writing expert opinion. The present-petitioner failed to provide any other contemporary signature in or around year of 1975. The supplied documents are not at all dependable and reliable document for examination of the signatures, as such, the learned trial court as the court of facts committed no error of law by passing the impugned judgment and order discharging the revisional application filed in the learned revisional court.

I have also made query about the health condition of the present-petitioner Most. Manik Chand and the learned Advocate for the petitioner submitted that she is in good health and capable to give deposition in the court as a witness. Therefore, the petitioner has an opportunity to record the statement of the petitioner in the court to verify the signature for ends of justice.

In view of the above discussions I consider that the learned revisional courts below committed no error of law by affirming the judgment and order passed by the learned trial court as well as a revisional court earlier and also an order upon review application. I am, therefore, not inclined to interfere into the impugned judgment and order passed by the learned courts below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The ad-interim order of stay granted at the time of issuance of the Rule upon the order dated 08.03.2005 passed in the Civil Revision No.57 of 2009 is hereby recalled and vacated.

The learned Joint District Judge, court No.1, Habiganj is hereby directed to dispose of the Title Suit No.01 of 2004 within one year from date of receipt of this judgment without allowing any unnecessary adjournment at the instance of the either of the parties as the learned Advocates for the respective parties in this Court given committed to this Court.

The office is directed to communicate this judgment and order to the concerned court immediately.